

Your Ref:
Our Ref: 26/01199/FUL



Mr Sam Britton
c/o Mrs Sharon Claughton
33 Trinity Church Road
London
SW13 8ET

11th June 2026

DECISION NOTICE

Dear Mr Sam Britton

TOWN AND COUNTRY PLANNING ACT 1990.

PERMISSION FOR DEVELOPMENT

The London Borough of Lambeth hereby permits under the above mentioned Acts and associated orders the development referred to in the schedule set out below **subject to any conditions imposed** therein and in accordance with the plans submitted, save in so far as may otherwise be required by the said conditions.

In accordance with the statutory provisions your attention is drawn to the statement of Applicant's Rights and General Information attached.

Application Number: 26/01199/FUL **Date of Application:** 16.04.2026 **Date of Decision:** 11.06.2026

Proposed Development At: 64 Brixton Water Lane London Lambeth SW2 1QB

For: Replacement of the rear garden shed with a single storey garden studio outbuilding including the replacement of the part of the boundary wall. Felling of 2 trees (Spindle and a laburnum tree). (Full Planning permission and Listed Building Consent ref : 26/01200/LB applications received).

Approved Plans
See condition 2

Conditions

1 The development to which this permission relates must be begun no later than three years from the date of this decision notice.

Reason: To comply with the provision of Section 91 of the Town and Country Planning Act 1990 (as amended).

Lambeth Planning
PO Box 80771
London
SW2 9QQ

Telephone 020 7926 1180
www.lambeth.gov.uk
planning@lambeth.gov.uk

2 The development hereby permitted shall be carried out in accordance with the approved drawings and documents:

PP-14716461v1; 25-211-S-750; 25-211-S-150; 11_10 Existing; 11_10 Proposed; 10_02 ; 00_02; 00_01.

Reason: For the avoidance of doubt and in the interests of proper planning to ensure an acceptable standard of development in accordance with the development plan.

3 The development hereby permitted shall only be used for purposes incidental to the enjoyment of the dwellinghouse in whose curtilage the approved outbuilding is situated and for no other purpose.

Reason: To protect the amenity of adjoining occupiers and to ensure that the outbuilding is not occupied as a self-contained dwelling, separate and apart from the original dwellinghouse, in accordance with Policies H5, H6 and Q2 of the Lambeth Local Plan (2021).

4 No development shall commence until a detailed Arboricultural Method Statement (AMS) has been submitted to and approved in writing by the Local Planning Authority. The AMS shall include:

- a) Tree protection fencing and ground protection measures
- b) Foundation design and construction methodology within or adjacent to the Root Protection Area (RPA) of T10 (London plane), including confirmation of foundation type (e.g. pile, pile-and-beam, or other no-dig solutions)
- c) Detailed construction information including excavation depths, pile locations, beam and slab design within the RPA
- d) Service and drainage routes, including methodologies for works within RPAs (e.g. hand-digging, no-dig techniques)
- e) Development shall be carried out in full accordance with the approved AMS.

Reason: To ensure the protection and retention of trees in the interests of visual amenity, biodiversity and the character of the Conservation Area, in accordance with Policy Q10 of the Lambeth Local Plan (2021).

5 All works within or adjacent to the RPA of T10 shall be carried out under the supervision of a qualified arboriculturist. A pre-commencement meeting and site briefing shall be undertaken with the contractor and site manager.

Arboricultural monitoring reports shall be submitted to the Local Planning Authority within 5 working days of each supervision visit.

Reason: To ensure the protection and retention of trees in the interests of visual amenity, biodiversity and the character of the Conservation Area, in accordance with Policy Q10 of the Lambeth Local Plan (2021).

6 All approved tree protection fencing and ground protection measures shall be installed prior to commencement and retained for the duration of the construction works. They shall not be removed or altered without the prior written consent of the Local Planning Authority.

Reason: To ensure the protection and retention of trees in the interests of visual amenity, biodiversity and the character of the Conservation Area, in accordance with Policy Q10 of the Lambeth Local Plan (2021).

Notes to Applicants:

In dealing with this application the Council has acted in line with the National Planning Policy Framework to work with the applicant in a positive and proactive manner. The council has made available on its website the policies and guidance provided by Lambeth Local Plan 2020-2035 (September 2021) and its supplementary planning documents. We also offer a full pre-application advice service in order to ensure that the applicant has every opportunity to submit an application that's likely to be considered acceptable.

1. 1This decision does not convey an approval or consent which may be required under any enactment, by-law, order or regulation, other than Section 57 of the Town and Country Planning Act 1990.

2 Your attention is drawn to the provisions of the Building Regulations (the Building Act 1984 [as amended]), and related legislation which must be complied with to the satisfaction of the Council's Building Control Officer.

3 Your attention is drawn to the provisions of The Party Wall Act 1996 in relation to the rights of adjoining owners regarding party walls etc. These rights are a matter for civil enforcement and you may wish to consult a surveyor or architect.

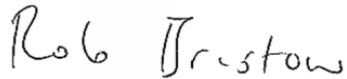
4 Your attention is drawn to the need to comply with the requirements of the Control of Pollution Act 1974 concerning construction site noise and in this respect you are advised to contact the Council's Environmental Health Division.

5 You are advised of the necessity to consult the Principal Highways Engineer of the Highways team on drw@lambeth.gov.uk in order to obtain necessary prior approval for undertaking any works within the Public Highway including Scaffold, Temporary/Permanent Crossovers, Oversailing/Undersailing of the Highway, Drainage/Sewer Connections and Repairs on the Highways, Hoarding, Excavations, Temporary Full/Part Road Closures, Craneage Licenses etc. You are advised to contact the Highways team at the earliest possible opportunity.

6 T10 London plane is an off-site public tree within Brockwell Park. Any pruning, crown lifting or tip reduction to this tree should be separately regularised through the appropriate Conservation Area tree notification / consent route unless clearly authorised by the planning permission.

7 The applicant must also obtain separate agreement from Lambeth Tree Services / the relevant Parks landowner function for any access into Brockwell Park, including airspace access, scaffolding, pruning access or works affecting park land. Planning permission should not be treated as landowner consent

Yours sincerely

A handwritten signature in black ink that reads "Rob Bristow". The signature is written in a cursive, slightly informal style.

Rob Bristow

Director - Planning and Sustainability
Growth and Environment Directorate

Date printed: 11th June 2026

INFORMATION FOR APPLICANTS GRANTED PLANNING PERMISSION SUBJECT TO CONDITIONS, OR WHERE PERMISSION HAS BEEN REFUSED.

General Information

This permission is subject to due compliance with any local Acts, regulations, building by-laws and general statutory provisions in force in the area and nothing herein shall be regarded as dispensing with such compliance or be deemed to be a consent by the Council thereunder.

Your attention is drawn to the provisions of the Building Regulations 1985 and related legislation which must be complied with to the satisfaction of the Council's Building Control Officer, PO Box 80771, London SW2 9QQ.

The Council's permission does not modify or affect any personal or restrictive covenants, easements, etc., applying to or affecting the land or the rights of any person entitled to the benefits thereof.

STATEMENT OF APPLICANT'S RIGHTS ARISING FROM THE REFUSAL OF PLANNING PERMISSION OR FROM THE GRANT OF PERMISSION SUBJECT TO CONDITIONS.

Appeals to the Secretary of State

If the applicant is aggrieved by the decision of the local planning authority to refuse permission or approval for the proposed development or to grant permission or approval subject to conditions, he may appeal to the Secretary of State in accordance with Section 78 of the Town and Country Planning Act 1990 within 12 weeks from the date of this notice. Appeals must be made on a form which is obtainable from The Planning Inspectorate, Room 3/13 Temple Quay House, 2 The Square, Temple Quay, Bristol BS1 6PN. Alternatively an Appeal form can be downloaded from their website at <https://www.gov.uk/appeal-planning-decision>. The Secretary of State has power to allow longer period for the giving of a notice of appeal but he will not normally be prepared to exercise this power unless there are special circumstances which excuse the delay in giving notice of appeal. The Secretary of State is not required to entertain an appeal if it appears to him that permission for the proposed development could not have been granted by the local planning authority, or could not have been so granted otherwise than subject to the conditions imposed by them, having regard to the statutory requirements, to the provisions of the development order, and to any directions given under the order.

Purchase Notice

If permission to develop land is refused or granted subject to conditions, whether by the local planning authority or by the Secretary of State for the Environment, and the owner of the land claims that the land has become incapable of reasonably beneficial use in its existing state and cannot be rendered capable of reasonable beneficial use by the carrying out of any development which has been or would be permitted, he may serve on the London Borough of Lambeth a purchase notice requiring that Council to purchase his interest in the land in accordance with the provisions of Section 137 of the Town and Country Planning Act 1990.

Compensation

In certain circumstances, a claim may be made against the local planning authority for compensation, where permission is refused or granted subject to conditions by the Secretary of State for the Environment on appeal or on a reference of the application to him. The circumstances in which such compensation is payable are set out in Section 120 and related provision of the Town and Country Planning Act 1990.